

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC
HOLDINGS, LLC, d/b/a
COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2017-CC-3814
Division: 3

vs.

ROSARIO ALANIZ and
ANY UNKNOWN TENANT(s),
Defendants.

_____/

EMERGENCY MOTION FOR ENTRY INTO PREMISES

COMES NOW, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel and moves this Court for an Order Granting the Plaintiff the right to enter the premises of the Defendants, ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), and states:

1. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida, and doing business under the name Colonial Mobile Manor at all times relevant.
2. Defendant, ROSARIO ALANIZ, is a natural person believed to own a double-wide mobile home located at 900 9th Avenue East, Lot 42, Palmetto, Manatee County, Florida, 34221.

3. Plaintiff brought an action against the Defendants for a writ of possession of the property and for damages pursuant to Fla. Stat. §723.061.

4. The defendants, through counsel, filed an answer to the complaint and sought affirmative defenses approximately one month ago.

5. Since having done so, however, the Defendants appear either to have vacated the premises, leaving same without either notice or having moved the court to determine their obligation to pay rent to support their affirmative defenses.

6. The Plaintiff has the duty to the other residents of the park to provide security for the residents of the park, including not leaving abandoned units unattended.

7. If the Defendants have not abandoned the mobile home, the Plaintiff asks simply to be notified of this fact so that it may mow the lawn and take other legal action in protection of the interests of the other members of the Plaintiff's mobile home park.

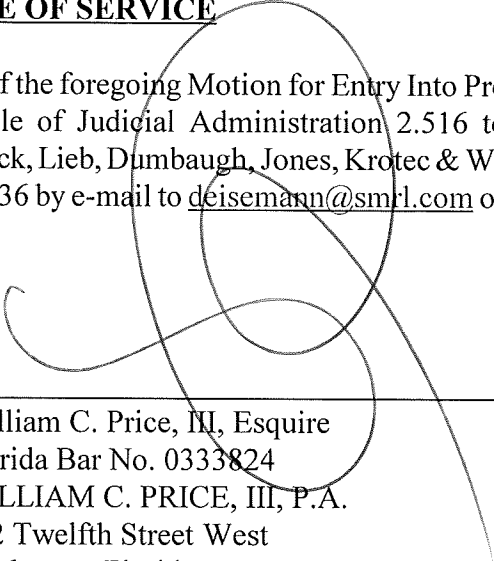
8. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot 42, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

9. Plaintiff is entitled to the application of Fla. Stat. §51.011 (summary procedure) and for this matter to be expeditiously determined.

WHEREFORE, Plaintiff requests this Honorable Court to enter an order for writ of entry onto the premises known as Lot 42, 900 9th Avenue East, Palmetto, FL 34221 and such other and further relief as the Court may deem proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Entry Into Premises has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to DEREK EISEMANN, ESQUIRE, Syrett, Meshad, Resnick, Lieb, Dumbaugh, Jones, Krotec & Westheimer, P. A., 1900 Ringling Blvd., Sarasota, Florida 34236 by e-mail to deisemann@smrl.com on this 15th day of November, 2017.



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